

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DFG

Date: 5/20/2026

Bill Number: SB174

Short Title (as it appears on BASIS): INVASIVE SPECIES MANAGEMENT

What action do you recommend the Governor take?

Select one.

☐ SIGN ☐ VETO ☒ LWOS

Action Justification – Why do you recommend the above action?

Please be specific.

SB 174 establishes the Alaska Invasive Species Council within ADF&G as an advisory body to coordinate amongst state, federal, local, tribal, and other agencies involved in invasive species management and make recommendations on interagency strategies, policies, and funding priorities for invasive species response, including prevention, detection, and eradication efforts.

ADF&G is neutral on this legislation. The department currently conducts and coordinates invasive species actions and regularly collaborates with other agencies, partners, and stakeholders. Given this, creating a formal advisory council is not necessary for the department to continue its work. This version of the bill establishes an advisory council that is more limited and manageable than earlier iterations from prior sessions and does not include federal seats. Additionally, the fiscal and programmatic impacts are minimal.

While ADF&G and other partners already coordinate invasive species efforts, it remains a policy decision for the Legislature – and now the Governor – whether to formalize this coordination through an advisory body. Allowing the bill to become law without signature is appropriate.

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What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

The bill creates an advisory Invasive Species Council composed of 11 members representing state agencies, the Legislature, the University of Alaska, Tribes, and other organizations involved in invasive species management in the state. Except for two legislative members appointed by presiding officers, Council members would be appointed by the governor, and serve three-year terms without compensation, per diem or other travel costs.

The Council is tasked with coordinating statewide invasive species efforts across ADF&G, DNR, DOT&PF, and other government and non-government entities, developing a five-year strategic plan every two years with priorities for addressing invasive species, including recommendations on legislation and funding, and providing annual reports on the status of invasive species and management actions. Additionally, the bill establishes a new account, the Invasive Species Response Fund, within the general fund. If the Legislature appropriates funds into this account, ADF&G may use the funds for invasive species management without further appropriation.

Alaska faces increasing threats from invasive plants, fish, and wildlife capable of damaging native ecosystems, harming fisheries and wildlife populations, and imposing significant economic costs. Early intervention consistently proves to be more effective and less expensive than attempting to control invasive species after they are established, making proactive statewide coordination and rapid response important.

Alaskans reliant on fisheries and wildlife resources may benefit from improved coordination. Industry sectors such as tourism, fisheries, and mariculture may also benefit. The bill does not impose new mandates on private businesses but improves engagement and coordination with stakeholder groups that already participate in prevention and management.

Existing staff may help implement the Council's recommendations, but the statewide invasive species program coordinator is already at capacity. To implement the bill, one additional permanent part-time position is needed, and the Legislature funded the requested position.

Finally, the bill sets timelines for initial appointments (within 60 days of the effective date) and meetings (first meeting must be held within 90 days after appointments and four total meetings in the first year) and provides an immediate effective date. The Council sunsets on July 1, 2035.

The bill aligns with the Governor's priorities by helping protect Alaska's fish and wildlife resources, reducing the potential for long-term state costs, and improving interagency coordination. One last consideration for the Governor is that the Council includes two legislative appointees on an executive-branch advisory body, which may warrant some scrutiny.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments

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should include an analysis for sections of the bill affecting their agencies.

Section 1 – Amends AS 16.20 to add three subsections. AS 16.20.800 establishes the 11-person Alaska Invasive Species Council; outlines the council’s role in managing invasive species; and establishes the form, function, membership, responsibilities, and expectations of the council. AS 16.20.810 establishes the invasive species response fund as an account in the general fund. AS 16.20.850 defines “council,” “department,” “invasive species,” “manage invasive species,” and “non-native species.”

Section 2 – Sets a date of repeal for the new subsections of July 1, 2035

Section 3 – Amends uncodified law to guide appointments and meetings for the initial year of the bill’s enactment.

Section 4 – Immediate effective date.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

HB 191 is the identical House companion to SB 174 (Version A), containing the same language establishing the Alaska Invasive Species Council within the Department of Fish and Game and creating the Invasive Species Response Fund. HB 191 moved in parallel to the House version of the bill, and no rider provisions or outside language were adopted into SB 174.

This bill is modeled after former Representative Geran Tarr’s bill ([HB54](#)) that was introduced during the 2021/2022 legislative session and would have established a much larger council (28 members), including federal seats, for a similar purpose. SB174 would establish a council with significantly fewer seats and would be more manageable.

Note: The House Finance CS would have authorized a trap-neuter/spay-and-release program for feral cats and dogs. These provisions would have created significant concerns for the department and the Board of Game due to risks of disease transmission, public health impacts, and harm to native wildlife and habitat. Because the CS failed to be adopted on the House Floor, these provisions were removed, and the department remains neutral on the bill.

Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

Support: Alaska Invasive Species Partnership, Summer Nay; Southeast Alaska Land Trust, (07) 586-3100; Cook Inlet Aquaculture Association, (907) 283-5761; Prince William Sound RCAC, Donna Schantz, International Arctic Research Center, tschwoerer@alaska.edu;

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Support: Cook Inlet Aquaculture Association, Donna Schantz, UAF – Tobias Schwoerer tschwoerer@alaska.edu, Summer Nay – Alaska Invasive Species Partnership, Margaret Custer – Southeast Alaska Land Trust (907) 586-3100

No Opposition was written or testified for SB174.

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

N/a

Commissioner's Signature: _____ **Date: 5/20/2026**

I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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